

Directive Principles of State Policy - (DPSP)

DPSP are enumerated in Part IV of the Constitution from Articles 36 to 51.

*(Actually DP (Directive Principles) are mentioned in Article 38 to 51. Article 36 deals with the definition of state while Article 37 deals with the nature and significance of DP.)

- The framers of the Constitution borrowed this idea from the Irish Constitution of 1937.
- Dr. B.R. Ambedkar described these principles as 'novel features' of the Indian Constitution.
- The Directive Principles along with FRs contain the philosophy of the Constitution and is the soul of the Constitution.

* Features of the Directive Principles -

1. The phrase 'Directive Principles of State Policy' denotes the ideals that state should keep in mind while formulating policies and enacting laws. These are the Constitutional instructions or recommendation to the state in legislative, executive and administrative matters.

2. The Directive Principles resemble the 'Instrument of Instructions' enumerated in the Government of India Act of 1935. These instruments of Instructions were issued to the Governor-General and to the Governors of the Colonies of India by the British Government under this Act. Directive Principles is merely another name for the instrument of instructions. The only difference is that they are instructions to the legislature & the executive.
3. The Directive Principles constitute a very comprehensive economic, social and political programme for a modern democratic State. They aim at realising the high ideals of justice, liberty, equality and fraternity as outlined in the Preamble. They embody the concept of a 'welfare State' and not that of a 'police State' which existed during the colonial era. Hence, they seek to establish economic and social democracy in the country.
4. The DP's are non-justiciable in nature, that is, they are not legally enforceable by the Courts for their violation. Therefore, the government (Central, state and local) cannot be compelled to implement them. Nevertheless, the Constitution (Article 37) itself says that these principles are fundamental in the

governance of the country and it shall be the duty of the state to apply these principles in making laws.

5. The DPs, though non-justiciable in nature, help the courts in examining and determining the Constitutional validity of a law.

* Classification of the Directive Principles:-

The Constitution does not contain any classification of DPs. However, on the basis of their content and direction, they can be classified into 3 broad categories - Socialist, Gandhian and Liberal-Intellectual.

- **Socialist Principles** :- These principles reflect the ideology of socialism. They lay down the framework of a democratic socialist State, aim at providing social and economic justice & set the path towards welfare state. They direct the state -

- a) to provide adequate means of livelihood to all citizens,
- b) to prevent concentration of wealth and means of production and ensure equitable distribution of wealth and material resources,
- c) to secure equal pay for equal work of men as well as women,
- d) to ensure a decent standard of living and leisure for all workers,

- e) to provide necessary opportunities and facilities to children and youth to prevent their exploitation,
- f) to make efforts to secure the right to work, education and public assistance in case of unemployment, sickness, old age etc.

• Gandhian Principles:- These Principles are based on Gandhian ideology. They represent the programme of reconstruction enunciated by Gandhi during the National movement. In order to fulfil the dreams of Gandhi, some of his ideas were included as DP. They require the state :-

- a) the establishment of village panchayats to function as units of self government,
- b) the promotion of educational and economic interests of weaker sections of society,
- c) the promotion of cottage industries,
- d) the prohibition of intoxicating drugs & drinks,
- e) prevention of the slaughter of cows, calves and other milch cattle etc.

• Liberal - Intellectual Principles :- The Principles included in this category represent the ideology of liberalism. They direct the state -

- a) a uniform civil code for the country.

- b) free and compulsory education for all children up to the age of 14 years.
- c) separation of the judiciary & executive.
- d) organisation of agriculture and animal husbandry along scientific lines,
- e) securing the participation of workers in the management of industries.
- f) safeguarding the forests & wildlife of the country,
- g) protecting monuments and places of artistic or historical importance.

The real significance of the DPs lies in the fact that they intend ~~the~~ to provide social and economic democracy in the country without which political democracy is a farce.

• New Directive Principles :-

The 42nd Amendment Act of 1976 added 4 new Directive Principles to the original list. They require the State :

1. To secure opportunities for healthy development of children (Article 39).
2. To promote equal justice and to provide free legal aid to the poor. (Article 39A)
3. To take steps to secure the participation of workers in the management of industries. (Article 43A)

4. To promote and improve the environment and to safeguard forests and wildlife (Article 48A).
- The 44th Amendment Act of 1978 added one more DP, which requires state to minimise inequalities in income status, facilities and opportunities (Article 38).
- The 86th Amendment Act of 2002 changed the subject matter of Article 45 and made elementary education a fundamental right under Article 21A. The amended directive requires the state to provide early childhood care and education for all children until they complete the age of 6 (six) years.
- The 97th Amendment Act of 2011 added a new Directive Principle relating to cooperative societies. It requires the state to promote voluntary formation, autonomous functioning, democratic control and professional management of cooperative societies. (Article 43B).

* Significance :-

1. They are like an 'Instrument of Instructions' addressed to all authorities in the Indian Union. They remind them of the basic principles of the new social and economic order, which the Constitution aims at building.

They have served as useful beacon-lights to the Courts. They have helped the courts in exercising their power of judicial review, that is, the power to determine the constitutional validity of a law.

3. They form the dominating background to all State action, legislative or executive, and also a guide to the courts in some aspects.
4. They amplify the Preamble, which solemnly resolves to secure to all citizens of India justice, liberty, equality and fraternity.
5. They facilitate stability and continuity in domestic and foreign policies in political, economic and social spheres in spite of the changes of the party in power.
6. They are supplementary to the fundamental rights of the citizens. They are intended to fill in the vacuum in Part III by providing for social and economic rights.
7. Their implementation creates a favourable atmosphere for the full and proper enjoyment of the FRs by the citizens.
8. They enable the opposition to exercise influence and control over the operations of the government. The opposition can blame the ruling party on the ground that its activities are opposed to the Directives.

They serve as a crucial test for the performance of the government. The people can examine the policies and programmes of the government in the light of these Constitutional declarations. 5.

They serve as common political manifesto. A ruling party, irrespective of its political ideology, had to recognise the fact that these principles are intended to be its guide, philosopher and friend in its legislative and executive acts.

* Implementation of DPs :-

Since 1950, the successive governments at the Centre and in the States have made several laws and formulated various programmes for implementing the DPs. These are :-

1. The Planning Commission was established in 1950 to take up the development of the country in a planned manner. The successive Five Year Plans aimed at securing socio-economic justice and reducing inequalities of income, status and opportunities. In 2015, the Planning Commission was replaced by NITI Aayog (National Institution for Transforming India).

2. Almost all the states have passed land reform laws to bring changes in the agrarian society and to improve the conditions of the rural masses. These measures include
 - a) abolition of intermediaries like zamindars, jagirdars, inamdars etc.
 - b) tenancy reforms like security of tenure, fair rents etc.
 - c) imposition of ceilings on land holdings,
 - d) distribution of surplus land among the landless labourers.
 - e) cooperative farming.
3. The Maturity Benefit Act (1961) and the Equal Remuneration Act (1976) have been made to protect the interests of women workers.
4. The Wildlife (Protection) Act, 1972 and the Forest (Conservation) Act, 1980, have been enacted to safeguard the wildlife and the forests respectively. The National Forest Policy (1988) aims at the protection, conservation and development of forests.
5. 3-tier panchayati raj system (at village, taluka and zila levels) has been introduced to translate into reality Gandhiji's dream of every village being a republic. The 73rd Amendment Act (1992) has been enacted to provide constitutional status and protection to these panchayati raj institutions.
6. Seats are reserved for SCs, STs and other weaker sections in government services and representative bodies.

The 89th Constitutional Amendment Act of 2003 bifurcated this combined commission into two separate bodies namely, National Commission for SCs and National Commission for ST.

4. The 102nd Amendment Act of 2018 conferred a Constitutional status on the National Commission for Backward classes and also enlarged its functions.

7a) In 2019, the Central Government issued orders providing 10% reservation to the EWSs in admission to educational institutions and civil posts and services in the Government of India.

8. The Criminal Procedure Code (1973) separated the judiciary from the executive in the public services of the State.

9. The Ancient and Historical Monument and Archaeological Sites and Remains Act (1951) has been enacted to protect the monuments, places and objects of national importance.

10. Primary health centres and hospitals have been established throughout the country to improve the public health.

11. Laws to prohibit the slaughter of cows, calves and bullocks have been enacted in some states.

12. Some states have initiated the old age pension schemes for people above 65 years.

13. India has been following the policy of non-alignment and panchsheel to promote international peace and security.

* Difference b/w FRs and DP.

6.

Fundamental Rights

1. These are justiciable, i.e., they are legally enforceable by the courts in case of their violation.
2. They aim at establishing political democracy in the country.
3. These have legal sanction.
4. They promote the welfare of the individual. Hence, they are personal and individualistic.
5. They do not require any legislation for their implementation. They are automatically enforced.
6. These are negative as they prohibit the state from doing certain things.
7. The courts are bound to declare a law violative of any of the FRs as unconstitutional & invalid.

Directive Principles

1. These are non-justiciable, i.e., they are not legally enforceable by the courts for their violation.
2. They aim at establishing social and economic democracy in the country.
3. These have moral and political sanctions.
4. They promote the welfare of the community. Hence, they are socialistic & socialistic.
5. They require legislation for their implementation. They are not automatically enforced.
6. These are positive as they require the state to do certain things.
7. The courts can't declare a law violative of any of the DPs as unconstitutional & invalid.

Fundamental Duties (FDs) —

1.

- The Fundamental Duties in the Indian Constitution are inspired by the Constitution of erstwhile, USSR. Japanese Constitution is, perhaps, the only democratic Constitution in world which contains a list of duties of citizens.

The framers of the Constitution did not feel it necessary to incorporate the fundamental duties of the citizens in the Constitution. However, they incorporated the duties of the state in the Constitution in the form of DPSP. Later in 1976, the fundamental duties of citizens were added in the Constitution. In 2002, one more FD was added.

- In 1976, the Congress Party set up the Sardar Swaran Singh Committee to make recommendations about fundamental duties, the need and necessity of which was felt during the operation of the internal emergency (1975-1977). The committee recommended the inclusion of a separate chapter on FDs in the Constitution. It stressed that the citizens should become conscious that in addition to the enjoyment of rights, they also have certain duties to perform as well.

The Congress Government at centre accepted these recommendations and enacted the 42nd Constitutional Amendment Act in 1976.

This amendment added a new part, namely, Part IVA to the Constitution.

This new part consists of only one Article, that is, Article 51A which for the first time specified a code of ten FDs of citizens.

* List of Fundamental Duties :-

According to Article 51A, it shall be the duty of every citizen of India :-

- a) to abide by the Constitution and respect its ideals and institutions, the National flag and the National Anthem.
- b) to cherish and follow the noble ideals that inspired the national struggle for freedom,
- c) to uphold and protect the sovereignty, unity and integrity of India,
- d) to defend the country and render national service when called upon to do so,
- e) to promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities & to renounce practices derogatory to the dignity of women,
- f) to value and preserve the rich heritage of the country's composite culture.

- g) to protect and improve the natural environment including forests, lakes, rivers and wildlife and to have compassion for living creatures.
- h) to develop scientific temper, humanism and the spirit of inquiry and reform.
- i) to safeguard public property and to abjure violence.
- j) to strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement.
- k) to provide opportunities for education to his child or ward between the age of six & fourteen years. This duty was added by the 86th Constitutional Amendment Act, 2002.

* Features of the FDs :-

1. Some of them are moral duties while others are civic duties. For instance, cherishing noble ideals of freedom struggle is a moral precept and respecting the constitution, National flag and National Anthem is a civic duty.
2. They refer to such values which have been a part of the Indian tradition, mythology, religions and practices.
3. Unlike some of FRs which extend to all persons whether citizens or foreigners, the FDs are confined to citizens only and do not extend to foreigners.

4. Like the DR, the fundamental duties are also non-justiciable. The Constitution doesn't provide for their direct enforcement by the courts. Moreover, there is no legal sanction against their violation. However, the Parliament is free to enforce them by suitable legislation.

* Significance :-

1. They serve as a reminder to the citizens that while enjoying their rights, they should also be conscious of duties they owe to their country, their society and to their fellow citizens.
2. They serve as a warning against the anti-national & antisocial activities like burning the national flag, destroying public property and so on.
3. They serve as a source of inspiration for the citizens & promote a sense of discipline and commitment among them. They create a feeling that the citizens are not mere spectators but active participants in the realisation of national goals.
4. They help the courts in examining and determining the constitutional validity of a law. In 1992, the Supreme Court ruled that

in determining the constitutionality of any law, if a court finds that the law in question seeks to give effect to a fundamental duty, it may consider such law to be 'reasonable' in relation to Article 14 or Article 19 & thus save such law from Unconstitutionality.

5. They are enforceable by law. Hence, the Parliament can provide for the imposition of appropriate penalty or punishment for failure to fulfil any of them.

* The Verma Committee on FDs of Citizens (1999) identified the existence of legal provisions for the implementation of some of the FDs. They are mentioned below:-

1. The Prevention of Insults to National Honour Act (1971) punishes disrespect to the Constitution of India, the National Flag and the National Anthem.
2. The various criminal laws in force provide for punishments for encouraging enmity between different sections of people on grounds of language, race, place of birth, religion and so on.

3. The Protection of Civil Rights Act (1955) provides for punishments for offences related to caste and religion.
4. The Indian Penal Code (IPC) declares the imputations and assertions prejudicial to national integration as punishable offences.
5. The Unlawful Activities (Prevention) Act of 1967 provides for the declaration of a communal organisation as an unlawful association.
6. The Representation of People Act (1951) provides for the disqualification of members of the Parliament or a state legislature for indulging in corrupt practice, that is, soliciting votes on the ground of religion or promoting enmity between different sections of people on grounds of caste, race, language, religion and so on.
- The Wildlife (Protection) Act of 1972 prohibits trade in rare and endangered species.
- The Forest (Conservation) Act of 1980 checks indiscriminate deforestation & diversion of forest land for non-forest purposes.